arrests, and inappropriately charged individuals in the past, and that they were continuing to engage in such conduct. Defendants failed to take reasonable steps to prevent further unlawful conduct by these officers whom they had reason to know would continue such conduct. The officers' unfitness and incompetence harmed Mr. Walker and the hiring, supervising, and retention of said officers was a substantial factor in causing Mr. Walker's harm.

Defendants contend the allegation of information and belief is insufficient because it does not provide a factual basis for plaintiff's information and belief. Citing *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531 and *Gomes v. Countrywide Home Loans, Inc*. (2011) 192 Cal.App.4th 1149, defendants argue that a plaintiff may plead matters on information and belief when the facts are outside his personal knowledge, but he must still plead the information that leads him to believe the allegation is true. (*Doe, supra*, 42 Cal.4th at 551, fn. 5.)

As noted in the opposition, plaintiff's allegations appear to mirror those in *C.A. v. William S. Hart Union High School Dist*. (2012) 53 Cal.4th 861, wherein the California Supreme Court upheld the sufficiency of similar allegations, albeit in a very different context (school district's liability for the acts of an employee who was also a sexual predator). The City attempts to distinguish that case based on one sentence that proclaims no liability based on "assumptions or speculation," but the sentence, when read in full, emphasizes the need for evidence, and that is not the stuff of demurrers. (*Id*. at 878.)

The case *is* notable for what plaintiffs there alleged, however. In *C.A. v. William S. Hart Union High School Dist*., the allegations on information and belief were alleged to be based on "personnel and/or school records of Defendants [that] reflect numerous incidents of inappropriate sexual contact and conduct with minors by teachers, staff, coaches, counselors, advisors, mentors and others, including incidents involving Hubbell, both on and off the premises of such Defendants." (*Id*. at 866-867.) This contrasts with the complete lack of allegations concerning a basis for plaintiff's belief in the present case.

The City is correct that more is needed here if plaintiff seeks to proceed on "information and belief." This is particularly true given that plaintiff should know, at a minimum (given the deposition of the lead officer), which officers were involved in the incident.

The demurrer to the seventh cause of action is sustained. However. Since the plaintiff seeks leave to amend, which is liberally granted, the Court will allow it.

12. 9:00 AM CASE NUMBER: C25-01274
CASE NAME: MARK ZUCCA VS. NELLY PICKERT
HEARING ON DEMURRER TO: COMPLAINT OR IN THE ALTERNATIVE, JUDGMENT ON THE PLEADINGS
FILED BY:
TENTATIVE RULING:*

Before the Court is a demurrer filed by defendants, SV Quick Capital Corporation ("SVQ") and Eminent Capital Investments, LLC ("ECI"). The demurrer is **sustained with leave to amend**, as discussed below. Any amended complaint shall be filed and served on or before August 28, 2026 (due to a pending motion to withdraw by plaintiff's counsel, the date is set out further than the usual ten days).

Background

Plaintiff, Mark Zucca, through his attorney-in-fact, filed a complaint in this action on May 5, 2025. He alleges twenty-two causes of action against multiple defendants. At the heart of his claims is the contention that he lent $41,500 (though at times the amount stated is $40,000) to defendant Nelly Mercedes Rickert in December of 2022. (Complaint, ¶¶22, 36-39.) Zucca contends he should have been paid back no later than December 31, 2022 according to the terms of the relevant promissory note. (*Id*. at Ex. 11.) He contends Ricket falsely promised the debt would be secured by a deed of trust, but never intended to perform that promise and the debt was never secured by a deed of trust. (*Id*. at ¶¶38-39, 132-133.) Plaintiff has named Rickert and multiple lenders who he alleges were conspiring with Rickert to defraud him.

Moving defendants, SV Quick Capital and Eminent Capital, responded by filing the present demurrer to causes of action 1-9 (fraudulent transfer counts), 11-12 (injunctive relief and common law fraudulent transfer), and 22 (declaratory relief) pursuant to Code of Civil Procedure section 430.10, subdivision (e). In support of the demurrer, they submit a Declaration of Wheng Wang, who purports to be an "authorized representative" of each of the two demurring entities.

Meet and Confer

The hearing on the demurrer was originally noticed for March 19, but the Court concluded additional compliance with meet and confer requirements was necessary. Accordingly, the hearing was re-set to April 9, 2026, but parties stipulated to continue the deadline for further meet and confer.

On April 3, 2026, moving parties filed a CMC statement that communicated the following:

> Defendant has been unable to meaningfully comply with the Court's meet and confer directive due to circumstances outside of Defendant's control, namely Plaintiff's lack of identified counsel and failure to provide a point of contact authorized to engage in the required discussions. Defendant remains ready, willing, and able to comply with the Court's order and to participate in a good faith meet and confer immediately upon Plaintiff identifying counsel or confirming self-representation.

The Court accepts this, together with the fact that the motion has been full briefed (including a substantive opposition), as sufficiently compliant with the requirements, and a reason to proceed on the merits.

Evidentiary Matters

Demurring defendants request judicial notice of facts contained in the Declaration of Wheng Wang pursuant to Evidence Code, § 452(h). Specifically, that (1) Eminent Capital is a corporation owned and operated by the same owner of SV Quick Capital; (2) in 2022 Rickert obtained a series of loans from SV Quick Capital, each secured by a deed of trust against the Orinda property and (3) each of those encumbrances, in addition to senior encumbrances by third parties, exhausted the property's equity.

Subdivision (h) of Evidence Code section 452 allows a court to take notice of "[f]acts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy." The statements in the declaration are not such facts. Nor do the moving defendants specify any "sources of reasonably indisputable accuracy" that would immediately verify these facts. The request is **denied**.

Both sides submit evidence not property considered on demurrer. The inquiry here, as noted below, is focused on what is pleaded (or subject to judicial notice), not extrinsic evidence.

Standard

In reviewing the sufficiency of a complaint, all material facts properly pleaded are deemed admitted, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Allegations must be liberally construed by drawing reasonable inferences from the facts pleaded, and with a view to substantial justice between the parties. (Code Civ. Proc., § 452; *Flynn v. Higham* (1983) 149 Cal. App. 3d 677, 679.) In ruling on a demurrer, the court considers the face of the pleading attacked and matters subject to judicial notice. (Code Civ. Proc. § 430.30(a).)

Discussion

A. <u>Counts 1-9 and 12 (fraudulent transfer counts)</u>

Demurring defendants, SQV and ECI, argue counts 1-9, as well as 12, are not adequately pleaded based on the lack of specific facts that would amount to a fraudulent transfer. They further argue that they received reasonably equivalent value for their loans and that the complaint fails to allege insolvency. The Court need not reach the latter fact-based arguments because it sustains the demurrer based on the former.

Although SVQ and ECI do not directly mention uncertainty, it is impossible to determine whether sufficient facts are alleged based on uncertainty. Without explicitly stating the defendants against whom each count is pleaded, the complaint groups multiple defendants in numerous allegations. For example, in paragraph 64, plaintiff alleges, "Defendants, singularly and jointly, conspired to a carry out a plot to defraud all creditors by engaging in fraudulent real estate transactions[.]" Because SVQ and ECI are both creditors and defendants, the allegation essentially accuses these defendants of defrauding themselves.

In other places, such as the fourth and fifth causes of action, the complaint completely omits any allegations against SQV and ECI, causing significant uncertainty as to which defendants are subject to that aspect of the complaint. (See, e.g., Complaint, ¶¶101-104.) The definition of "Defendants" further complicates any possibility of determining who is being referenced throughout the complaint because the term includes "all of the Defendants, jointly and severally." (Complaint, ¶13.) In other places, "Defendants" appears to only refer to Nelly Rickert. (See, e.g., Complaint, ¶35 ["Defendants were acutely aware of their insolvency prior to Defendants seeking out a loan from Plaintiff in the amount of $41,500."].)

Further, while several alleged transactions (such as a grant of plaintiff's Orinda property for $1.00 in consideration, three separate and incomplete bankruptcy proceedings, and transfers of 1% interest in real property, later "corrected" to 50% interest) certainly suggest irregular circumstances, plaintiff does not describe how each transaction satisfies any particular element of a fraudulent transfer claim. Nor does plaintiff explain how SQV and ECI are implicated in each of the transactions, if at all. As defendants maintain, parroting the statute is not enough, particularly where many transactions are at issue and none is specifically referenced.

Plaintiff's opposition, in arguing the complaint's allegations are sufficient, does not cite specific paragraphs of the complaint. The opposition employs phrases such as "double dipping" and "second bite of the apple" without explaining their meaning or applicability of these concepts as they pertain to the elements of a fraudulent transfer. Instead, plaintiff impermissibly attaches additional unauthenticated exhibits to the memorandum of points and authorities with no request for judicial notice. To the extent that these exhibits are not duplicative of the 38 exhibits already attached to the complaint, plaintiff may attach them to any amended complaint to ensure they are considered.

The general demurrer is sustained with respect to counts 1-9 and 12. Because this is the first challenge to the pleading, and since plaintiff appears to be capable of further clarifying the grounds for his claims, leave to amend is granted.

B. Count 11 (Injunctive Relief)

Plaintiff seeks an injunction to prevent "any other actions" by "Defendants" which have the ability to harm his recovery, as well as imposition of a constructive trust with respect to the fraudulently conveyed assets. SQV and ECI demur, arguing the count is a remedy, not a cause of action. The Court concurs that no cause of action is stated. To the extent plaintiff seeks to enjoin any actions by SQV or ECI, it is not clear and no facts are offered in support of any injunctive relief against them.

The general demurrer is sustained with respect to count 11. Because this is the first challenge to the pleading, leave to amend is granted.

C. Count 22 (Declaratory Relief)

Citing Code of Civil Procedure, § 1060, SQV and ECI argue no declaratory relief cause of action is stated against them. The Court agrees that none of the allegations in this count specifically refers to SQV or ECI. As set forth in the demurrer, any declaratory relief as to plaintiff's note would relate only to the parties to that note, not demurring defendants.

Accordingly, the demurrer is sustained with respect to the cause of action for declaratory relief. Leave to amend is granted.

13. 9:00 AM CASE NUMBER: C25-01714
CASE NAME: OCEAN VIEWS LLC/ BRANDON ROWE VS. DISCOVERED USA, INC
***HEARING ON MOTION IN RE: LEAVE TO AMEND INITIAL COMPLAINT**
FILED BY: OCEAN VIEWS LLC/ BRANDON ROWE
****TENTATIVE RULING:****

Before the Court is Plaintiffs Ocean Views LLC and Brandon Rowe's Motion for Leave to Amend Initial Complaint ("Motion").

Plaintiffs' Motion is **granted** as discussed below.

Factual Allegations and Procedural Background

Plaintiffs filed their initial complaint on June 16, 2025, alleging a single cause of action for breach of contract against Defendant Discovered USA, Inc. Mr. Rowe was initially proceeding in pro per. Discovered USA filed its Answer on July 28, 2026.

On November 3, 2025, Plaintiffs filed a Substitution of Attorney indicating the Plaintiffs were now represented by counsel. Plaintiffs filed the instant motion for leave to amend on February 23, 2026.